

Hounslow Corporation Act 1968

CHAPTER xxviii

ARRANGEMENT OF SECTIONS

PART I PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II LANDS

4. Suspension of restrictive covenants.
5. Provision of substituted sites.
6. Compulsory acquisition of easements.
7. Agreements with developers.

PART III DISTRICT HEATING

8. Interpretation of this Part of Act.
9. Works for provision of heat.
10. Power to buy heat in bulk.
11. Supply of heat.
12. Power to lay mains, etc., and break open streets.
13. Power to lay down or erect electric lines, etc.

Section

14. Power to supply fittings.
15. Heating charges.
16. Security for payment of accounts.
17. Discount for prompt payment.
18. Power to enter premises.
19. Interference with apparatus, etc.
20. Byelaws for protection of heating undertaking.
21. Notice to be given before quitting premises supplied with heat.
22. Corporation not to be exempted from proceedings for nuisance.
23. As to application of Act of 1950.
24. Purchase of land for heating undertaking.

PART IV

MARKET UNDERTAKING

25. Interpretation of this Part of Act.
26. Operation of this Part of Act.
27. Continuation of market undertaking.
28. Power of Corporation in connection with market.
29. Extension of section 80 of Act of 1955.
30. Powers to lease land, buildings and stalls.
31. Power to compound for payment of tolls.
32. Power to take possession of stalls for non-payment of rent, etc.
33. Power of Corporation to require information.
34. Market byelaws.
35. Further market byelaws.
36. Regulation of traffic in market.
37. Traffic offences on market roads.
38. Removal and disposal of horticultural produce and containers.
39. Purchase of land for market undertaking.
40. Power to let Brentford site.

PART V

FINANCE

41. Power to borrow.
42. Electronic or mechanical accounting equipment.
43. Reserve funds.
44. Separate accounts of undertakings.
45. Application of revenue of undertakings.

PART VI

MISCELLANEOUS

Section

46. As to grants of burial, etc.
47. Recreational and other facilities for employees.
48. Microfilming of documents.
49. Destruction of documents connected with applications.
50. Inspection of plans relating to applications.
51. Amendment of section 85 of Act of 1967.
52. Sanitary conveniences for persons employed on construction work.
53. Awnings over footway.
54. For protection of British Railways Board.
55. For protection of Metropolitan Water Board.
56. Saving for Thames River (Prevention of Floods) Acts.
57. Saving for land drainage.

PART VII

GENERAL

58. Byelaws.
59. Local inquiries.
60. Arbitration.
61. Restriction on right to prosecute.
62. Appeals.
63. Repeals.
64. Evidence of proceedings, appointments, etc.
65. Reckoning of periods.
66. Application of general enactments.
67. Costs of Act.

SCHEDULES:

Schedule 1—Provisions applied to market roads—

Part I—Provisions in respect of which certain officers of the Corporation do not have the powers of a police constable.

Part II—Provisions in respect of which certain officers of the Corporation have the powers of a police constable.

Schedule 2—Enactments repealed.

Schedule 3—Sections of Act of 1936 applied—

Part I—Sections applied to this Act.

Part II—Sections applied to sections 52 and 53 of this Act.

ELIZABETH II



1968 CHAPTER xxviii

An Act to confer further powers on the mayor, aldermen and burgesses of the London borough of Hounslow in relation to lands and streets; to empower them to establish an undertaking for the supply of heat; to confer further powers on them in relation to the management and control of their market undertaking; to make further provision for the finances, improvement, local government and health of the borough; and for other purposes. [26th July 1968]

WHEREAS—

(1) The London borough of Hounslow (hereinafter called "the borough") is a London borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter called "the Corporation"):

(2) It is expedient that the Corporation should be authorised to supply heat to premises within and outside the borough as this Act provided:

(3) The Corporation are the owners of a market within the borough and it is expedient to confer further powers upon the Corporation in relation to the management and control of their market undertaking and that the powers of the Corporation in relation thereto should be enlarged and extended as in this Act provided:

(4) There are in force in the borough certain local Acts and would be of local and public advantage if the provisions of those Acts were consolidated with certain amendments and additions in one Act:

(5) It is expedient that the other provisions contained in this Act should be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.
1963 c. 33.

(7) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, as applied by the London Government Act, 1963, have been observed:

(8) A map marked "Map of Existing Market lands" showing coloured pink the land belonging to the Corporation and used for the purposes of their market undertaking was in the month of November, 1967, deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office of the House of Commons and in the office of the town clerk of the borough:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Hounslow Corporation Act 1968.

Division of
Act into
Parts.

2. This Act is divided into Parts, as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—District heating.

Part IV.—Market undertaking.

Part V.—Finance.

Part VI.—Miscellaneous.

Part VII.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless the subject or context otherwise requires—

1911 c. cxii.

"the Act of 1911" means the Chiswick Urban District Council Act, 1911;

PART I
—cont.

- “the Act of 1933” means the Local Government Act, 1933; 1933 c. 51.
- “the Act of 1936” means the Public Health Act, 1936; 1936 c. 49.
- “the Act of 1946” means the Acquisition of Land (Authorisation Procedure) Act, 1946; 1946 c. 49.
- “the Act of 1960” means the Road Traffic Act, 1960; 1960 c. 16.
- “the Act of 1961” means the Land Compensation Act, 1961; 1961 c. 33.
- “the Act of 1963” means the London Government Act, 1963; 1963 c. 33.
- “the Act of 1965” means the Compulsory Purchase Act, 1965; 1965 c. 56.
- “the Act of 1967” means the Road Traffic Regulation Act, 1967; 1967 c. 76.
- “apparatus” means—
- (a) in relation to the Southern Electricity Board, electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by that board; 1882 c. 56.
- (b) in relation to the North Thames Gas Board or the Metropolitan Water Board, mains, pipes or other apparatus belonging to or maintained by those boards;
- (not being in any case apparatus in respect of which the relations between the Corporation and the Southern Electricity Board and the North Thames Gas Board are regulated by the provisions of Part II of the Public Utilities Street Works Act, 1950) and includes any works constructed for the lodging therein of apparatus; 1950 c. 39.
- “the borough” means the London borough of Hounslow;
- “contravention” includes a failure to comply, and “contravene” shall be construed accordingly;
- “the Corporation” means the mayor, aldermen and burgesses of the borough;
- “the council” means the council of the borough;
- “enactment” includes an enactment in this Act or in any general or local Act or any order, byelaw, scheme or regulation for the time being in force within the borough;
- “the London council” means the Greater London Council;
- “magistrates’ court” has the same meaning as in the Magistrates’ Courts Act, 1952; 1952 c. 55.
- “metropolitan road” has the same meaning as in the Act of 1963;
- “the Minister” means the Minister of Housing and Local Government;
- “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946 c. 31. 1946;

PART I
—cont.

“statutory undertakers” means any company, body or person authorised by an Act of Parliament or having the force of an Act to supply electricity, gas or water;

“the town clerk” means the town clerk of the borough;

(3) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of, any subsequent enactment including this Act.

PART II
LANDS

Suspension of
restrictive
covenants.

4.—(1) If the Corporation—

- (a) acquire land by agreement; or
- (b) have acquired land by agreement before the passing of this Act; or
- (c) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon the Corporation may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

- (a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the borough where a copy of the resolution and map may be inspected and specifying the time, not being less than three months from the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;

- (b) on or before the date of the first publication of the notice—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

PART II
—cont.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister and a copy thereof to the Corporation within the period specified in the notice.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and after considering the report of the person who held the inquiry may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Corporation acquire or appropriate the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine not being earlier than the date on which the Corporation acquire or appropriate the land.

(7) If in the opinion of the Corporation there is doubt whether any such land as is mentioned in subsection (1) of this section is affected by any restriction to which that subsection relates or whether any such restriction is enforceable the Corporation may—

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land is situated a notice describing the land and stating generally the effect of this subsection and subsections (8) and (9) of this section and specifying the time not being less than three months from the first publication of the notice within which and the manner in which any person claiming to be entitled to enforce a restriction against the use of the land may intimate such claim to the Corporation and shall produce to them his documents of title in support of his claim;

(b) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who

PART II
—cont.

they consider after reasonable inquiry may reasonably be expected to claim to be entitled to the benefit of a restriction against the land; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(8) If any person is entitled to the benefit of a restriction against the land but fails to comply with the requirements of such notice, the restriction shall, so far as concerns such person and his successors in title, be deemed to have been suspended under the foregoing provisions of this section, but without prejudice to any claim for compensation under subsection (9) of this section.

(9) The Corporation shall pay compensation in accordance with the provisions of section 10 of the Act of 1965 to any person entitled to the benefit of a restriction suspended under the powers of this section who suffers loss in consequence thereof.

(10) Any restriction suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land affected by the restriction, or, if the Corporation convey the land to any body for any of the purposes of the Education Acts, 1944 to 1968, so long as the land is used by that body for the purpose of those Acts and, if compensation is paid by the Corporation under subsection (9) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that the land may be used for a particular purpose, the restriction shall, after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts, 1944 to 1968, remain unenforceable only so long as the land is used for that purpose.

(11) If the Corporation dispose of any land affected by the restriction suspended under the powers of this section they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(12) Nothing in this section shall apply to any restriction for the protection of or for preventing interference with the use of or for securing access to operational land or apparatus of the British Railways Board, the London Transport Board or any statutory undertakers contained in any deed, wayleave, agreement or other instrument.

(13) In this section the expression "the appropriate Minister" means the Minister of the Crown having power to authorise the

compulsory purchase of the land for the purpose for which the Corporation have acquired or agreed to acquire or appropriated land.

PART II
—cont.

The power of the Corporation to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land that may be acquired under any enactment. Provision of substituted sites.

(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the appropriate Minister, may be authorised to create in favour of the Corporation an order or over any land which under any enactment the Corporation may be authorised to acquire compulsorily any easement or right in, under or over or in relation to such land which, in the opinion of the Corporation, is essential to the full enjoyment or use of any land or buildings owned or occupied, or intended to be owned or occupied, by the Corporation for the purposes of their undertakings, powers or duties. Compulsory acquisition of easements.

(2) The appropriate Minister shall not confirm any order under this section unless he determines that the easement or right can be created without material detriment to the land in, under or over or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately after the commencement of the Act of 1946 and as if—

(a) the expression “ compulsory purchase of land ” in the Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, under or over any land to which either of those paragraphs relates or in, under or over any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or factory or of a park or garden belonging to a house within the meaning of section 8 of the Act of 1965.

(5) In this section the expression “ the appropriate Minister ” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the enjoyment or use of which

PART II
—cont.

Agreements
with
developers.

the easement or other right is required or who would have such power if such land were not already owned by the Corporation.

7.—(1) The Corporation and any person having an estate interest in any land within the borough may enter into an agreement which may provide for all or any of the following:—

- (a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of the development shall be completed;
- (c) providing that the estate or interest of that person in the land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person until the Corporation shall have first satisfied themselves that the last-mentioned person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over land or over a part or parts of any building or structure which is comprised in the development and the lighting, maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated; the provision and maintenance of any support of public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance and use of facilities for the parking of vehicles for or in connection with development of that land;
- (f) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding section may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they do not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the Local Land Charges Register, be enforceable by the Corporation against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the provisions

plants contained in the agreement the Corporation may, after giving not less than twenty-one days' notice of their intention to do, enter on the land and do the work in default and the expenses incurred by the Corporation shall be recoverable by the Corporation from the person in default.

PART II
—cont.

Except as may be expressly provided in the agreement, an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Corporation may take or acquire shares or other securities in any company incorporated in the United Kingdom in which an agreement is entered into under this section.

PART III

DISTRICT HEATING

In this Part of this Act the following expressions have the meanings hereby respectively assigned to them:—

Interpretation
of this Part
of Act.

"the Act of 1950" means the Public Utilities Street Works Act, 1950;

1950 c. 39.

"the electricity board" means the Southern Electricity Board;

"the gas board" means the North Thames Gas Board;

"the generating board" means the Central Electricity Generating Board;

"heat" means heat however supplied and includes hot water and hot air;

"heating fittings" includes radiators, air heaters, water heaters, mains, pipes, meters, taps, cocks, valves, ferrules and other works and apparatus used in connection with the heating undertaking;

"heating undertaking" means the heating undertaking authorised by this Part of this Act and includes all lands, stations, boiler-houses, properties, works, buildings, machinery, plant, mains, pipes, apparatus, appliances, easements, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in connection with the provision, storage, transmission, distribution and supply of heat;

PART III
—cont.

“ local authority ” means the council of a borough, urban district or rural district;

“ main ” includes mechanical and thermal protection for main and apparatus used in connection with a main.

Works for
provision
of heat.

9.—(1) Subject to the provisions of this Part of this Act, the Corporation may on any lands belonging to or leased to them erect, lay down, maintain, work and use stations, boiler-houses, mains, pipes and other works for providing, storing, transmitting, distributing and supplying heat and for producing any material, product, matter or thing arising or used in the process of the provision of heat (including the generation of electricity), together with such buildings, boilers, engines, pumps, machinery, hoists, sidings, electric lines, matters and things of whatever description as may be required by the Corporation to enable them to provide, store, transmit, distribute and supply heat, and the Corporation may accordingly on those lands provide, store, transmit, distribute and supply heat and may produce such materials, products, matters and things:

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted;
- (b) any electrical works or apparatus erected, laid down, maintained, worked and used in pursuance of this section shall be so constructed, maintained, worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line;
- (c) before installing any engines or machinery for the generation of electricity (other than electricity so used for or in connection with the supply of heat under the powers of this Part of this Act at the work at which it is generated) the Corporation shall consult with the generating board and shall not install such engines or machinery except with the agreement of that board.

(2) Any electricity generated by the Corporation as aforesaid may be sold—

- (a) to the generating board; or
- (b) with the approval of the generating board to the electricity board;

PART III
—cont.

and any electricity so generated and not so sold as aforesaid may be used only for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the generating board and the electricity board) elsewhere.

(3) The generating board shall, subject to the terms of any agreement made under paragraph (c) of the proviso to subsection (1) of this section, take all the electricity generated by the Corporation as aforesaid which is not—

- (a) required for or in connection with the heating undertaking; or
- (b) supplied to the electricity board with the approval of the generating board;

on such terms and conditions as may be agreed between the Corporation and the generating board or, in default of agreement, determined by arbitration, and the arbitrator in determining the terms and conditions shall have regard to the costs which the generating board would incur in producing the equivalent amount of electricity from their own resources.

10.—(1) The Corporation may enter into and carry into effect agreements with any person able to give a supply of heat for the purposes of this Part of this Act of such a supply and—

- (a) any such person may enter into any such agreement accordingly; and
- (b) any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works, plant, materials or things required for the purposes of the agreement; and
- (c) the Corporation may let any land which they may possess to any such person to enable that person to supply heat in accordance with the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of surplus heat from any generating station or gasworks, refuse destructor or industrial plant, and any person able to supply heat may enter into such an agreement.

11.—(1) The Corporation may supply heat to—

- (a) such premises in the borough; and
- (b) such premises owned by them outside the borough;

Supply of
heat.

PART III
—cont.

as they may think fit, upon and subject to the provisions of Part of this Act and such terms and conditions as may be agreed between the Corporation and the owners or occupiers of the premises.

(2) The Corporation may by agreement with the owners or occupiers of the premises and with the consent of the appropriate local authority supply heat to any premises outside the borough which are so situated that they can be included within the scope of the heating undertaking for the supply of heat to premises referred to in subsection (1) of this section without unreasonable addition to expenditure for the purposes thereof and without prejudicially affecting the supply of heat to any such premises upon and subject to the provisions contained in this Part of the Act and such terms and conditions as may be agreed between the Corporation and the owners or occupiers of the premises and between the Corporation and the local authority.

(3) The terms and conditions subject to which the consent of the local authority is granted shall not be other than such terms and conditions as are necessary to protect the functions of the authority.

(4) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(5) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice of their intention so to do to the owner of the premises and, in the event of the supply of heat to such premises being discontinued, notice of such discontinuance shall be given by the Corporation to the owner of such premises.

Power to lay
mains, etc.,
and break
open streets.
1945 c. 42.

12.—(1) The following provisions of the Third Schedule to the Water Act, 1945, are hereby incorporated with this Part of this Act, namely:—

- Part V (Power to lay mains &c);
- Section 22 (Power to break open streets);
- Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, &c.);
- Section 27 (Remedies where undertakers fail to comply with foregoing requirements);
- Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and
- Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(2) For the purposes of this Part of this Act, in the construction of the provisions incorporated by this section—

“limits of supply” means the borough;

“mains” includes a pipe or duct for the transmission of heat whether or not that transmission is for the purpose of the supply of heat;

“service pipe” means a pipe or duct for supplying heat from a main to any premises;

“supplying water” means supplying heat and “supply of water” shall be construed accordingly; and

“the undertakers” means the Corporation.

(3) Nothing in the provisions incorporated by this section shall authorise the Corporation to lay down a main outside the borough except for the purpose of—

(a) giving or facilitating the supplying of heat in accordance with the provisions of this Part of this Act; or

(b) taking a supply of heat from any works or premises outside the borough.

3.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 9 (Works for provision of heat) of this Act the Corporation may lay down or erect electric lines and apparatus—

(a) in, under or over any street, subject however to the provisions of subsection (3) of this section; and

(b) with the consent of every owner and occupier of any land not forming part of a street in, on or over that land;

and may from time to time inspect, repair, alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise:

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld, and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Minister of Power.

(2) (a) Where the Corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus on or over any land not forming part of a street or inspect, repair, alter, renew or remove any electric line or apparatus laid down or erected in, on or over any such land, they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the laying down, erection, inspection, repair, alteration, renewal or removal of the electric line or apparatus.

PART III
—cont.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

1945 c. 42.

(3) The following provisions of the Third Schedule to the Water Act, 1945, shall apply with the necessary modifications to the laying down, erection, inspection, repair, alteration, renewal or removal of electric lines and apparatus under this section:—

Section 22 (Power to break open streets);

Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, &c.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(4) For the purpose of such application, the Corporation shall be deemed to be the undertakers and the limits of supply shall be deemed to be the borough.

1888 c. 12.

1947 c. 54.

1899 c. 19.

(5) Without prejudice to the operation of section 4 of the Electric Lighting Act, 1888, the provisions for the protection of the Postmaster General and his telegraphic lines which are contained in the Electricity (Supply) Acts, 1882 to 1936, as amended by the Electricity Act, 1947, and in the schedule to the Electric Lighting (Clauses) Act, 1899, shall so far as applicable extend and apply to any electric lines or apparatus laid down, erected under this section, and references in those provisions to the electricity board or the undertakers shall be construed as references to the Corporation.

(6) The powers of this section shall not be exercised except with the consent of the electricity board which consent shall not be unreasonably withheld and any dispute as to whether such consent is or is not unreasonably withheld shall be determined by the Minister of Power.

Power to
supply
fittings.

14.—(1) In any premises to which the Corporation supply or propose to supply heat they may provide (but not manufacture) and may supply by way either of sale or hire any such heating fittings as may be required for or in connection with the supply or utilisation of the heat so supplied and may install, repair, renew or alter any heating fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation, repair, renewal or alteration.

(2) The Corporation may make such charges as may be made or, in default of agreement, as may be reasonable for any heating fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any heating fittings let for hire by the Corporation and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent nor be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall, notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises, at all times continue to be the property of and (subject to the provisions of the Hire-Purchase Act, 1965) removable 1965 c. 66. by the Corporation:

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All heating fittings supplied by the Corporation under any hire-purchase agreement shall, until payment of the final instalment of the purchase money for such fittings, be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) The Corporation shall so adjust the charges to be made under this section that the income therefrom will, taking one year with another, meet any expenditure by them thereunder, including interest upon any moneys borrowed for the purposes thereof, establishment charges, and any sums carried to a sinking fund for repayment of moneys so borrowed and the cost of repairs or renewals.

(6) (a) If any person wilfully injures or suffers to be injured by heating fittings belonging to the Corporation he shall be liable to a fine not exceeding twenty pounds.

(b) Without prejudice to the foregoing provisions of this subsection, the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender either as a simple contract debt in any court of competent jurisdiction, or, if the amount does not exceed twenty pounds, summarily as a civil debt.

PART III
—cont.

Heating
charges.

15.—(1) The Corporation may from time to time prescribe a scale of charges (in this section called “heating charges”) for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking (where premises have been disconnected from the said undertaking) for reconnecting premises thereto, and where heat is supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same, in which case they shall be payable to the owner.

(2) The heating charges payable by any person may after demand therefor be recovered from him by the Corporation either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt and, where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises, the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges:

Provided that if, before the expiration of the said seven day notice is given to them that there is a dispute as to the amount due in respect of the heating charges or as to the liability to pay the same, the Corporation shall not cut off the supply of heat until the dispute has been settled or, on the application of either party, determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery any heating charges payable by the occupier of any premises of which he is the tenant of the Corporation and connected as aforesaid may be recovered as rent due from him.

Security for
payment of
accounts.

16. The Corporation may require any person desiring to take a supply of heat or to be supplied with heating fittings or materials under this Part of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

Discount
for prompt
payment.

17.—(1) The Corporation may, if they think fit, make an allowance by way of discount on all sums of money due to them for the supply of heat or meter rent or for heating fittings or materials supplied at the request of the owner or occupier of the premises from any person who pays the same within such time of

...and thereof as the Corporation think fit to prescribe in that half, and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand ... in respect of such charges.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

8.—(1) Subject to the provisions of this section, any authorised officer of the Corporation shall, on producing if so required some authenticated document showing his authority, have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act, or any premises in or upon which any heating fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid, for the purpose of—

Power to enter premises

- (a) inspecting and examining any heating fittings whether belonging to the Corporation or not;
- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any byelaws made thereunder;
- (c) ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;
- (d) taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation:

Provided that, except in cases of emergency arising from defects in any heating fittings, admission to any premises shall not be demanded as of right unless twenty-four hours' notice of intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing that—

- (a) admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and
- (b) there is reasonable ground for entry into the premises for any such purpose as aforesaid;

...justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises, if need be by force.

PART III
—cont.

(3) An authorised officer of the Corporation entering premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary, and, on leaving any unoccupied premises which he has entered by virtue of such a warrant, shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) Any person who, in compliance with the provisions of this section or of a warrant issued thereunder, is admitted into a factory, workshop or workplace shall not disclose to any person except where such disclosure was made in the performance of his duty, any information obtained by him in the factory, workshop or workplace with regard to any manufacturing process or trade secret, and if he does so he shall be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

(6) Nothing in this section shall authorise any authorised officer of the Corporation to enter any premises (other than offices or showrooms) belonging to or used by the generating board or the electricity board or the gas board for the purpose of or in connection with the generation or supply of electricity or the manufacture, storage or supply of gas (as the case may be).

Interference
with
apparatus, etc.

19.—(1) If any person wilfully and without the consent of the Corporation turns on, opens, closes, shuts off or otherwise interferes with any heating fitting belonging to the Corporation and thereby improperly causes the supply of heat to be interfered with he shall be liable to a fine not exceeding twenty pounds and whether proceedings be taken against him in respect of this offence or not, the Corporation may recover from him the amount of any damage or loss sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds, summarily as a civil debt.

(2) If any person wrongfully takes, uses or diverts any heat from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the Corporation) be liable to a fine not exceeding ten pounds.

Byelaws for
protection
of heating
undertaking.

20.—(1) The Corporation may make byelaws for preventing the waste, misuse, undue consumption or contamination of, or interference with, the circulation or supply of heat by them under this Part of this Act.

(2) Byelaws under this section may include provisions—

- (a) prescribing the size, nature, materials, strength and workmanship and the mode of arrangement, connection, disconnection, insulation, alteration and repair of the heating fittings to be used; and
- (b) forbidding the use of any heating fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—
 - (i) waste, misuse, undue consumption or contamination of or interference with the circulation of heat; or
 - (ii) reverberation in pipes; and
- (c) requiring the testing of fittings, and the making of charges therefor.

(3) If any person contravenes the provisions of any byelaw made under this section the Corporation may, without prejudice to their right to take proceedings in respect of such contravention, cause any heating fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered, repaired or replaced, and may recover the expenses reasonably incurred by them in so doing from the person in default either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

21.—(1) If the occupier of any premises supplied with heat by the Corporation quits the premises without giving notice of his intention so to do to the Corporation he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises, whichever first occurs.

(2) The notice to be given under this section by an occupier of premises shall be given in writing to the address and in the manner specified by the Corporation for the purpose.

(3) There shall be endorsed upon every demand note in respect of heating charges payable to the Corporation—

- (a) the foregoing provisions of this section, or a statement of the effect thereof; and
- (b) the address for and manner of, service of a notice under this section; and
- (c) the length of notice required by the Corporation.

PART III
—cont.

Corporation
not to be
exempted from
proceedings
for nuisance.

22. Nothing in this Part of this Act shall exonerate the Corporation from any indictment, action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them:

Provided that this section shall not apply to the exercise by the Corporation of the powers of sections 12 (Power to lay mains, etc. and break open streets) and 13 (Power to lay down or erect electric lines, etc.) of this Act.

As to
application of
Act of 1950.

23.—(1) In its application to works executed or proposed to be executed by the Corporation under the powers conferred on them by this Part of this Act, the Act of 1950 shall have effect if in section 2 (1) (b) and section 2 (2) (b) of that Act, the reference to a sewer authority did not include the London council.

(2) Section 26 of the Act of 1950 as modified by this section shall apply to the London council as sewer authority as if—

- (a) the sewers of that council were apparatus to which the section applies; and
- (b) the London council were owning undertakers for the purposes of the section in respect of their sewers; and
- (c) the words “in a street or controlled land” in subsection (1) of the section were omitted.

(3) In the preceding subsection of this section, the expression “sewers” includes any manholes, ventilating shafts, pumps and other accessories belonging to a sewer and any main used for the conveyance of sewage sludge or sewage effluent.

(4) In any case in which—

- (a) the Corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of undertakers' works authorised by this Part of this Act, or are the owning undertakers within the meaning of that section in respect of apparatus laid down under the powers of this Part of this Act; and

- (b) either the generating board, the electricity board, the gas board or the Metropolitan Water Board are the owning undertakers or (as the case may be) the operating undertakers;

the said section 26 shall be modified as follows:—

- (i) the notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans, sections and particulars of the works;

(ii) subject to the provisions of the next succeeding paragraph the said notice shall be given not less than seven days before the works are commenced;

(iii) on the first occasion on which the Corporation execute undertakers' works under this Part of this Act, and on any subsequent occasion on which the Corporation execute such works extending for a distance of more than one hundred yards, the said notice shall be given not less than twenty-one days before the works are commenced and shall be accompanied by information as to—

(A) the maximum temperatures and pressures at which heat is proposed to be transmitted or distributed by the Corporation by means of such works; and

(B) the measures (if any) proposed to be taken by the Corporation with respect to the securing of the safety of any apparatus of the generating board or the electricity board or the gas board or the Metropolitan Water Board from damage or injury arising directly or indirectly from such works and with respect to the insulation of such works so as to prevent the escape of heat therefrom;

(iv) any question which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply.

(5) In this section any expressions to which meanings are assigned by the Act of 1950 have the same respective meanings.

24.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the Minister, may be authorised to purchase land within the borough compulsorily for the purposes of the heating undertaking. Purchase of land for heating undertaking.

(2) The Act of 1946 shall apply to the compulsory purchase of land under this section and accordingly shall have effect as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946.

PART IV

MARKET UNDERTAKING

Interpretation
of this Part
of Act.

1955 c. 16.
(4 & 5 Eliz. 2)

25. In this Part of this Act unless the context otherwise requires—

“ the Act of 1955 ” means the Food and Drugs Act, 1955.

“ the Brentford site ” means the lands shown coloured pink on the map referred to in the Preamble to this Act;

“ horticultural produce ” means—

(a) fresh fruit, dried fruit, frozen fruit and preserved fruit;

(b) fresh vegetables, dried vegetables, frozen vegetables and preserved vegetables;

(c) fresh herbs and dried herbs;

(d) fresh edible fungi, dried edible fungi and preserved edible fungi;

(e) nuts;

(f) cut flowers;

(g) dried flowers;

(h) decorative foliage;

(i) Christmas trees;

(j) pot plants, ferns, bedding plants and herbaceous plants;

(k) shrubs, privet and flowering trees;

(l) fruit trees, fruit bushes and fruit plants;

(m) seeds, seedlings, bulbs, corms, tubers and seed potatoes; and

(n) horticultural and florists' sundries;

“ the market ” means the wholesale horticultural produce market of the Corporation for the time being;

“ market road ” means any road which, or any area of land which, is for the time being vested in or the property of the Corporation as market authority by virtue of this Part of this Act and is accessible to motor vehicles, not being a road to which the Act of 1960 applies;

“ the market undertaking ” means the undertaking of the Corporation comprising the market;

“ motor vehicle ” has the same meaning as in the Act of 1960.

Operation of
this Part of
Act.

26. This Part of this Act shall come into force on 1st January, 1969.

PART IV
—cont.Continuation
of market
undertaking.

7.—(1) The market undertaking as it exists at the commencement of this Part of this Act shall continue vested in the Corporation and be held, used and enjoyed by them as if it were established under this Act.

(2) Notwithstanding the provisions of subsection (1) of this section, the Corporation shall be a market authority for the purposes of sections 51 to 61 of the Act of 1955, in their application to the market.

28. The Corporation may upon the Brentford site and upon any other lands within the borough for the time being belonging to the Corporation and appropriated by them for the purposes of the market undertaking or acquired by them under section 39 (Purchase of land for market undertaking) of this Act—

Power of
Corporation
in connection
with
market.

(a) alter, improve, enlarge, remove and continue or discontinue the market or any part thereof;

(b) erect, alter, enlarge, improve, demolish, reconstruct or rebuild and maintain market halls, houses, buildings, warehouses, offices, shops, banks, auction rooms, catering establishments, establishments licensed for the sale of intoxicating liquors, petroleum filling stations and service stations for the maintenance and repair of vehicles and other buildings, works and conveniences;

(c) provide, maintain, operate and control—

(i) vehicles, plant and machinery for the transport or handling of articles, commodities and produce and the containers therefor within the market;

(ii) plant and machinery for accelerating or retarding the ripening of produce or for securing the storage of such produce at controlled temperatures or otherwise in conditions designed to prevent its deterioration;

(iii) plant and machinery for washing or cleansing any premises or place or vehicle within the market;

(d) provide, maintain and let on hire movable stalls, trestles and stands;

(e) do all such other acts as may be necessary or proper for the purposes of or in connection with the market undertaking;

(f) make such charges as they think fit for the use of any facilities and equipment provided under this section:

Provided that—

(i) the Corporation shall not themselves manage or operate any establishment licensed for the sale of intoxicating liquors, petroleum filling station or service station provided under this section;

PART IV
—cont.

- (ii) the Corporation shall exercise their powers under paragraph (b) of this section subject to all enactments relating thereto;
- (iii) any development authorised by this section shall not be deemed for the purposes of the Town and Country Planning General Development Order, 1963, to be development authorised by an Act which designates specifically both the nature of the development and the land upon which it may be carried out;
- (iv) the powers of the Corporation under paragraph (f) of this section shall not be exercisable in respect of stallage, tolls and charges which the Minister is empowered to approve under section 52 of the Act of 1955.

Extension of
section 80 of
Act of 1955.

29. Section 80 of the Act of 1955 shall have effect in its application to the Corporation as if in subsection (1) for the word "meat" there were substituted the words "meat, horticultural produce as defined in the Hounslow Corporation Act, 1968"

Powers to
lease land,
buildings and
stalls.

30.—(1) The Corporation may lease or agree to lease, subject to such terms and conditions as the Corporation shall think fit, any land or buildings situate in the market either at a reserved rent or on a fine or both for any term not exceeding ninety-nine years.

(2) The Corporation may lease or agree to lease, subject to such terms and conditions as the Corporation shall think fit, any office, bench, cellar, shop, stall, store, standing place, warehouse, house, tenement, building or other convenience situate in the market or forming part of or acquired or erected in connection with the market undertaking to any person either at a reserved rent or on a fine or both for any term not exceeding twenty-one years.

Power to
compound
for payment
of tolls.

31.—(1) The Corporation may enter into a composition with any person with respect to the payment of any tolls or charges under this Part of this Act.

(2) The Corporation may, if they think fit, include in such composition an allowance by way of discount with respect to the tolls or charges due to them under this Part of this Act.

(3) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

Power to
take possession
of stalls for
non-payment
of rent, etc.

32. If any tenant, stall-holder or occupier shall not after any stallages, rents or tolls have become due and payable to the Corporation in respect of any stall, standing place, bench, cellar

PART IV
—cont.

other convenience in any market house, market hall or market belonging to the Corporation and after demand has subsequently been made therefor pay the same within three days of the demand and the Corporation may enter upon and take possession of any stall, standing place, bench, cellar or other convenience and re-let the same without prejudice to any other remedy for the recovery of such stallages, rents or tolls.

Power of
Corporation
to require
information.

33. Subject to the provisions of this section the Corporation may, by notice served on any person who, whether as principal or as agent, sells by wholesale in the market, require him to furnish to them such information, including information as to the quantity and value of horticultural produce dealt in by him, and as to the places of origin of such horticultural produce, as may be necessary for or incidental to the discharge or exercise by the Corporation of their duties or powers as market under-takers:

Provided that nothing in this section shall enable the Corporation to require any person to furnish information except information relating to horticultural produce brought into the market.

34.—(1) In addition to and without prejudice to any other Market powers conferred on the Corporation by section 61 of the Act of 1955, the Corporation may make byelaws with respect to the market for all or any of the following purposes, namely:—

- (a) prohibiting or regulating the bringing into the market of any article, commodity or produce intended for sale within the market or of any specified description of any such article, commodity or produce;
- (b) prohibiting or regulating the bringing or sending into and the retention in the market of empty containers for any such article, commodity or produce as aforesaid or any specified description of such empty containers or requiring persons who in the market have in their possession or under their control such empty containers or any specified description of such empty containers to remove them from the market or, in default of removal, to deliver them to such premises within the market as may be designated by or under the regulations for the reception of such containers or, as the case may be, containers of that description for storage there or for the collection (for subsequent removal for storage) of such containers or, as the case may be, containers of that description.

(2) Byelaws under this section may grant exemptions from any of the provisions thereof or provide for the grant of such exemptions by such persons as may be specified in the byelaws.

PART IV
—cont.

(3) For the purposes of this section a description of any article, commodity or produce may be framed by reference to the circumstances whatsoever.

(4) In its application to byelaws made under this section section 251 of the Act of 1933 shall have effect as if for the words "five pounds" there were substituted the words "fifty pounds" or on a second or subsequent conviction one hundred pounds.

Further
market
byelaws.

35.—(1) In addition to and without prejudice to the powers conferred upon the Corporation by section 61 of the Act of 1955 the Corporation may make byelaws with respect to the market for all or any of the following purposes, namely:—

(a) securing the cleanliness of any land or premises within the market and any vehicle entering the market (including shops, stands and other places and vehicles where articles, commodities or produce are stored, sold or are exposed for sale or inspection) and preventing the accumulation on or in any such land, premises or vehicle, and securing the removal therefrom, of refuse;

(b) prohibiting or regulating the erection in the market of signs, nameplates, fascia boards and advertisements;

(c) preventing the outbreak and spread of fire in the market and, in particular, for that purpose—

(i) imposing requirements with respect to the provision and maintenance of fire-fighting equipment;

(ii) imposing prohibitions, restrictions or requirements with respect to the storage, or the depositing in any place (otherwise than for storage), of such descriptions of articles, commodities, produce, containers or packing materials as appear to the Corporation to be flammable;

(iii) imposing prohibitions, restrictions or requirements with respect to the storage, the depositing in any place (otherwise than for storage) or the use of such descriptions of preservatives, accelerators or retarders as appear to the Corporation to be flammable or any such specified preservative, accelerator or retarder as so appears;

(iv) imposing prohibitions, restrictions or requirements with respect to the use of appliances for heating, cooling or lighting and fittings for such appliances;

(v) imposing such prohibitions, restrictions or requirements as appear to the Corporation requisite for securing that no articles, commodities or produce of any description are stored in such manner as to obstruct the use of fire-fighting equipment;

PART IV
—cont.

- (d) (i) prescribing the purposes for which vehicles or vehicles of a particular class or description may be brought into the market;
- (ii) prescribing the times at which vehicles or vehicles of a particular class or description may enter or leave the market;
- (iii) requiring the identification of drivers and vehicles entering or leaving the market or the approaches thereto and prescribing the method of such identification;
- (iv) preventing obstruction in the market and regulating vehicular traffic therein and, in particular, imposing speed limits on vehicles within the market and restricting or regulating the loading or unloading of vehicles therein;
- (v) restricting or regulating the parking of vehicles in the market and, in particular, prescribing the times and places at, during and on which vehicles or vehicles of any particular class or description may be parked;
- (e) prohibiting (except as may be otherwise provided in the byelaws) the bringing into or keeping in the market of any animal of whatsoever kind or species;
- (f) regulating the conduct of persons resorting to the market and, in particular, preserving order therein and preventing damage to, and loss of, property therein.

(2) In this section—

“accelerators” means substances used for accelerating the ripening of commodities or produce;

“preservatives” means substances (including insecticides and fungicides) used for preventing deterioration in the condition of commodities or produce;

“retarders” means substances used for retarding the ripening of commodities or produce.

36.—(1) Any officer duly authorised by the Corporation to Regulate traffic on market roads may (on production, if required, of his authority) give reasonable directions as to the movement or stopping of any vehicle in the market.

Provided that such directions shall not conflict with any byelaw made under this Part of this Act.

(2) If the driver of any vehicle in the market fails to comply with a direction given under the provisions of subsection (1) of this section, he shall be liable to a fine not exceeding twenty pounds.

(3) Nothing in this section shall apply to any vehicle or the driver thereof while the vehicle is on a road as defined in section 257 of the Act of 1960.

PART IV
—cont.

Traffic
offences
on market
roads.

1967 c. 30.

37.—(1) The Act of 1960, the Road Safety Act, 1967, and the Act of 1967, shall have effect as if, in the sections thereof mentioned in Schedule 1 to this Act, the expression “road” and the expression “highway” included a market road and as if in the sections thereof mentioned in Part II of Schedule 1 to this Act the expression “police constable” included an officer of the Corporation authorised in that behalf; and any person who commits an offence under any of those sections, as extended by this section, shall be liable to be dealt with as if the offence had been committed under those sections on a road as defined by section 257 of the said Act of 1960 and, subject to the provisions of this section, all the provisions of the said Acts, so far as applicable, shall apply accordingly.

(2) If the Corporation by written licence permit the use outside market days and hours of any land in the market, allocated to the time being for car parking, by any person for recreational purposes involving the use of motor vehicles or bicycles, the provisions of the Act of 1960, the Road Safety Act, 1967, and the Act of 1967 mentioned in the said Schedule 1 shall, by virtue of the licence, be suspended for the period of the licence in respect of the land in the market the use of which for such recreational purposes is permitted by the licence.

(3) Regulations or orders made under section 64 or 70 of the Act of 1960 and from time to time in force shall extend and apply to market roads as they apply to roads as defined in section 257 of that Act, and section 64 (2) and section 239 of the Act shall apply accordingly:

1962 c. 13.

Provided that, if no duty is chargeable under the Vehicle (Excise) Act, 1962, in respect of a motor vehicle—

(a) by virtue of the provisions of section 6 (6) of that Act or

(b) by reason only that the motor vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said regulations shall not apply in respect of that motor vehicle while it is being driven, or to any person while driving it, on a market road.

Removal and
disposal of
horticultural
produce and
containers.

38.—(1) If any horticultural produce or an empty container therefor is stored or deposited or causes an obstruction in contravention of a provision contained in the byelaws having effect by virtue of this Part of this Act, the Corporation may remove it, and, subject to the provisions of this section, may sell or otherwise dispose of it.

(2) It shall be the duty of the Corporation, where they remove any horticultural produce or empty container under this section, to use their best endeavours to notify, as soon as may be, the person from whom it was removed, or any person who may be prejudicially affected by its removal, of the removal of the produce or container.

PART IV
—cont.

after the removal, the person appearing to them to be entitled to the time of removal to the custody or control of the horticultural produce or empty container of the fact of its having been removed and of the place to which it has been removed.

(3) The Corporation shall not dispose (otherwise than by way of sale) of any horticultural produce or empty container removed under this section unless, in their opinion, it is unsaleable.

(4) The power of disposal conferred on the Corporation by this section shall not be exercised before the expiration of a period of seven days after the removal unless, in the opinion of the Corporation, the condition of the horticultural produce or empty container is such as to render expedient the disposal thereof before the expiration of that time.

(5) Any horticultural produce or empty container removed under this section shall be delivered to a person entitled to the custody or control thereof if, before it is disposed of under this section, he pays to the Corporation the costs reasonably incurred by them in connection with its removal and storage up to the time of payment.

(6) If the net proceeds of the sale under this section of any horticultural produce or empty container exceed the costs reasonably incurred by the Corporation in connection with its removal and storage up to the time of sale, the excess shall be paid to the person who at the time of removal was the owner thereof upon his claiming it; and if the net proceeds of the sale are short of such costs, the deficiency may be recovered from that person by the Corporation as a simple contract debt in any court of competent jurisdiction.

39.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the Minister, may be authorised to purchase land within the borough compulsorily for the purposes of the market undertaking.

(2) The Act of 1946 shall apply to the compulsory purchase of land under this section and accordingly shall have effect as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946.

40. If the market is provided on lands other than the Brentford site, being lands for the time being belonging to the Corporation and appropriated by them for the purposes of the market undertaking or acquired by them under section 39 (Purchase of land for market undertaking) of this Act, the Corporation, without prejudice to any other power they may have relating to the disposal of land, may let the Brentford site for any term.

PART V

FINANCE

Power to
borrow.

41.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantee) Act, 1946.

1946 c. 58.

Electronic or
mechanical
accounting
equipment.

42.—(1) The Corporation may, if they think fit, provide services and facilities for the processing of data for any authority, body or person by means of any electronic or mechanical accounting equipment which the Corporation may possess, and the Corporation may make such charges as may be agreed for the provision of those services and facilities.

(2) Information obtained by any employee of the Corporation in the course of the provision of such services or facilities shall not without the consent of the authority, body or person from which it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

Reserve funds.

43.—(1) Notwithstanding anything contained in any enactment the Corporation may at any time after—

- (a) the passing of this Act create a reserve fund out of the revenue of the heating undertaking authorised by Part III (District heating) of this Act; and
- (b) the coming into force of Part IV (Market undertaking) of this Act create a reserve fund out of the revenue of the market undertaking authorised by that Part;

setting aside in respect of the undertaking such money as they think reasonable and accumulating the same until the fund so created amounts to the maximum reserve fund for the time being prescribed by the Corporation, not exceeding a sum equal to one-fifth of the aggregate capital expenditure on the undertaking or such higher sum as may be approved by the Minister.

(2) A reserve fund created in pursuance of this section shall be applicable to answer any deficiency at any time happening in the income from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for the purpose of meeting expenses incurred in the replacement and repair of buildings, plant, vehicles or apparatus forming part of the undertaking or for the purpose of extending and improving such buildings, plant, vehicles and apparatus and so that if that fund at any time be reduced it may thereafter be restored to the prescribed maximum and so from time to time as often as such reduction happens:

Provided that resort may be had to the reserve fund under the foregoing provisions of this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(3) Pending the application of the reserve fund created in pursuance of this section to the purposes authorised in subsection (2) of this section the moneys in the said fund shall (unless applied in any other manner authorised by any enactment and in so far as those moneys are not for the time being required for the purposes of the fund) be invested in any security in which trustees are for the time being authorised by law to invest trust moneys.

(4) In this section and the next two following sections the expression "undertaking" means the heating undertaking authorised by Part III (District heating) and the market undertaking authorised by Part IV (Market undertaking) of this Act and each of those undertakings.

44.—(1) The Corporation shall keep separate accounts in respect of the undertaking so as to include all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking and so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all income (including investment income) in respect of the undertaking, and on the other side all

PART V
—cont.

expenditure in respect of the undertaking, such expenditure being divided so as also to show the amounts expended in respect of each of the following purposes (that is to say):—

- (a) the working and establishment expenses and cost maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or in connection with the undertaking or used for those purposes under any enactment;
- (c) the annual charges in respect of the repayment of the principal of any moneys borrowed or used as aforesaid;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the establishment and maintenance of a reserve fund in respect of the undertaking.

(2) The Corporation shall apportion between the accounts to be kept by them under this section and any other accounts the Corporation any receipts, credits, payments and liabilities which from time to time ought to be so apportioned.

(3) In this section and the next following section the expression “investment income” in relation to an undertaking means so much of the income received by the Corporation from the investment of moneys of an authorised fund established in connection with the undertaking as cannot be carried to the credit of the fund because the fund has reached its prescribed maximum amount.

Application of
revenue of
undertakings.

45. If in respect of any financial year the revenue and investment income (if any) of any undertaking shall together exceed the moneys expended or applied by the Corporation in respect of that undertaking properly chargeable to revenue the Corporation may in respect of that year apply out of the general rate fund of the borough a sum not exceeding the amount of such excess in any of the following ways or to any of the following purposes:—

- (a) the reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) in providing, renewing, improving or extending any works, buildings, machinery, plant or conveniences for the purposes of or forming part of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) in providing working capital for the undertaking;
- (d) in the exercise of the powers of the Corporation under section 43 (Reserve funds) of this Act of establishing and maintaining a reserve fund in respect of the undertaking.

PART VI

MISCELLANEOUS

6. Notwithstanding anything in any enactment—

As to grants
of burial, etc.

(a) a grant of the exclusive right of burial in any part of a burial ground or cemetery maintainable by the Corporation; and

(b) any licence granted by the Corporation;

may be given under the hand of the town clerk or his duly authorised deputy instead of under the common seal of the Corporation.

7.—(1) The Corporation may provide, maintain and replace, contribute to the cost of providing, maintaining and replacing, recreational, social and welfare facilities for their employees. Recreational
and other
facilities for
employees.

(2) For the purposes aforesaid, the Corporation may—

(a) erect, maintain and replace buildings;

(b) make such charges as they think fit for the use of facilities provided under this section;

(c) make regulations for the management of such premises.

(3) No power conferred upon the Corporation by this section shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners, or of the Secretary of State or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or

(b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Corporation) subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

8.—(1) The Corporation may make and retain microfilm recordings of documents of the Corporation. Microfilming
of documents.

(2) Notwithstanding anything contained in any enactment, the Corporation may destroy any documents of the Corporation, other than minute books, of which they have made and retained microfilm recordings:

PART VI
—cont.

Provided that—

1958 c. 51.
1962 c. 56.

- (a) the Corporation shall not under this section destroy records deposited with them under the Public Records Act, 1958, or acquired or accepted by them under section 2 of the Local Government (Records) Act, 1962, as amended by the Act of 1963; and
 - (b) the Corporation shall afford a right of access for the public to a microfilm recording of a document which has been destroyed in pursuance of this section equal to the right of access, if any, of the public to the document so destroyed.
- (3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.
- (4) Notwithstanding anything contained in any enactment or any rule of law, an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the town clerk certifies that—
- (a) the document has been destroyed; and
 - (b) a microfilm recording of the document has been made and
 - (c) the enlargement is an enlargement of that microfilm recording.
- (5) In this section unless the context otherwise requires—
- (a) “document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the council or any committee of the council;
 - (b) “microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

Destruction
of documents
connected
with
applications.

49. At any time after a period of six years from the date of the receipt by the Corporation of an application made to the Corporation for a decision, determination, grant, consent, agreement, approval or permission, the Corporation may destroy any documents received by them in connection with the application:

PART VI
—cont.

provided that nothing in this section shall authorise the Corporation to destroy the application and a copy of any plan or plans approved by them in connection therewith, together with any related certificate, consent, permit or other document issued pursuant to any enactment.

10. For the avoidance of doubt it is hereby declared that the Corporation or their duly authorised officer may on being requested to do so produce, for inspection by any person who satisfies them or their duly authorised officer that he has a genuine interest therein, any plans or drawings which have been lodged or deposited with them in connection with any application made to the Corporation pursuant to any enactment for a decision, determination, grant, consent, agreement, approval or permission.

Inspection of plans relating to applications.

11. Section 85 of the Act of 1967 shall have effect, in its application to offences committed within the borough, as if at the end of subsection (1) thereof there were added—

Amendment of section 85 of Act of 1967.

“and under Part III of the Civic Amenities Act, 1967 ”. 1967 c. 69.

12. The Corporation may by notice require a contractor engaged in or upon any building operations in the borough, or upon the construction or reconstruction of any works therein, within such time as may be specified in the notice—

Sanitary conveniences for persons employed on construction work.

(1) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon; and

(2) where the workpeople employed thereon comprise both men and women, to provide as aforesaid for men and women separately;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations works—

(i) to which section 127 of the Factories Act, 1961, applies; 1961 c. 34.
or

(ii) at any mine or quarry within the meaning of the Mines and Quarries Act, 1954.

1954 c. 70.

53.—(1) (a) If a person erects, or permits to be erected, over the footway of a street in the borough, being a highway maintainable at the public expense, an awning which—

Awnings over footway.

(i) projects over any part of the footway which is less than 2 feet from the carriageway; or

PART VI
—cont.

- (ii) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding twenty pounds.

(b) An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience:

Provided that before serving such a notice as aforesaid in respect of premises abutting on a metropolitan road the Corporation shall consult the London council.

(3) Nothing in this section shall prejudice or affect the provisions of section 104 of the London Passenger Transport Act 1934, or section 65 of the London Passenger Transport Act 1938.

1934 c. xcvi.
1938 c. xcii.

(4) In this section "awning" includes a blind, shade or other covering and the supports thereof.

For
protection of
British
Railways
Board.

54. For the protection of the British Railways Board (in this section called "the board"), unless otherwise agreed between the Corporation and the board, the following provisions shall apply and have effect, that is to say:—

(1) The Corporation shall maintain to the reasonable satisfaction of the board the ferro concrete structure provided as a fender sheathed with wood on the outside for the protection of the northern iron cylinders supporting the railway bridge belonging to the board over the river Thames in accordance with the provisions of the Act of 1911;

(2) The Corporation shall so maintain and use the river wall or embankment (Work B) authorised by section of the Act of 1911, and fender (in this section called "the said works") as not injuriously to affect any such railway bridge or other work and in the event of any injury being occasioned to such railway bridge or work by the maintenance, user or removal of the said works the board may make good the injury and may recover from the Corporation the reasonable expenses of so doing;

PART VI
—cont.

- (3) The Corporation shall on demand pay to the board any extra cost the board may incur in maintaining their works owing to the maintenance of the said works and also the expense of superintending, lighting and watching the works of the board during the repair by the Corporation of the said works affecting any railway bridge or other work belonging to the board for the purpose of preventing interference, obstruction, danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise;
- (4) Nothing in this Act contained or in any Act incorporated therewith shall prejudice the right of the board to enter at any time upon any land in the borough for the purposes of examination, maintenance or reconstruction of the bridge carrying the railway over the river Thames;
- (5) The Corporation shall not in any manner in the maintenance, user or repair of the said works obstruct or interfere with the free uninterrupted and safe user of any railway bridge or other work belonging to the board or any traffic thereon;
- (6) The Corporation shall be responsible for and make good to the board all losses, damages and expenses which may be occasioned to the board or any of their works or property or to the traffic on their railways or to any Company or person using the same by or by reason of the failure of the works authorised by the Act of 1911, or any of them or by or by reason of any act, default or omission of the Corporation or of any person in their employ or of any contractors for the said works or any part thereof and the Corporation shall effectually indemnify and hold harmless the board from all claims and demands upon or against them by reason of such failure or of any such act, default or omission;
- (7) Any difference between the Corporation and the board arising under this section shall be settled by arbitration.

55. For the protection of the Metropolitan Water Board (in this section called "the board"), unless otherwise agreed in writing between the Corporation and the board, the following provisions shall have effect, that is to say:—

For
protection of
Metropolitan
Water
Board.

- (1) The board their engineers, workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any of the apparatus of the board situate in or under the commons if and so far as

PART VI
—cont.

the board now have rights of access thereto and shall be at liberty to do all such works in and upon the commons (if and so far as they now have rights of access thereto) as may be necessary for inspecting, repairing, maintaining, removing, replacing or extending such apparatus at their own expense and restoring and making good the surface. The Corporation shall provide and fix and at all times thereafter maintain at such place or places as the board may reasonably require in any fence or enclosure which they may hereafter erect round any portion of the commons in which mains of the board are laid a gate or gates having a width of at least nine feet between the posts thereof to enable the board to enter with vehicles for the purpose of inspecting, repairing, renewing or otherwise dealing with such mains;

- (2) Nothing in this Act contained shall empower the Corporation to erect over the said mains any building, structure or thing which might unreasonably impede the board in their access to the said mains;
- (3) If any interruption in the supply of water by the board shall without their written authority be in any way occasioned either by the execution or failure of the works authorised by the Act of 1911 or of any protective works or by any act or omission of the Corporation or of any of their contractors, agents, workmen or servants or any person in the employ of them or any of them the Corporation shall pay to the board all loss, costs, damages and expenses which the board may sustain or incur by reason of such interruption;
- (4) In this section "the commons" means the commons known respectively as Chiswick Common, Turnham Green and Stamford Brook Common situate within the borough;
- (5) Any difference between the Corporation and the board arising under this section shall be settled by arbitration.

Saving for
Thames River
(Prevention of
Floods)
Acts.

56. Nothing in this Act shall exempt the Corporation from any of the provisions of the Thames River (Prevention of Floods) Acts, 1879 to 1962, or diminish, alter or in any way affect the powers, rights, duties, responsibilities or obligations of any person or body under any of the provisions of those Acts.

Saving for
land drainage.
1930 c. 44.
1961 c. 48.

57. Nothing in this Act shall exempt the Corporation from any of the provisions of the Land Drainage Act, 1930, and the Land Drainage Act, 1961, as extended by section 62 of, and Schedule 14 to, the Act of 1963, or diminish, alter or in any way affect the powers, rights, duties, responsibilities or obligations of any person or body under any of the provisions of those Acts.

PART VII

GENERAL

8. As respects byelaws made under this Act the confirming Byelaws.
authority for the purpose of section 250 of the Act of 1933 shall
the Minister except that, in the case of byelaws made under
the provisions mentioned in the first column of the following
table, the confirming authority shall be the authority respectively
mentioned in the second column of that table:—

tion 20 (Byelaws for protection of heating undertaking)	Minister of Power.
paragraphs (iv) and (v) of paragraph (d) of subsection (1) of section 35 (Further market byelaws)	Minister of Transport.

9.—(1) Any Minister of the Crown may cause such local Local inquiries.
inquiries to be held as he may consider necessary for the purpose
of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933
shall apply in relation to any such inquiry; and for that purpose
the definition of “department” in subsection (8) of that section
shall include any Minister of the Crown having functions under
this Act as well as the Ministers therein mentioned.

10. In arbitrations under a provision of this Act mentioned in Arbitration.
the first column of the following table the reference shall be to a
single arbitrator to be appointed by agreement between the
parties, or, in default of agreement, to be appointed by the person
mentioned in the second column of that table on the application
of any party after giving notice in writing to the other party or
parties:—

Provision of Act	Person appointing arbitrator
tion 9 (Works for provision of heat)	The President of the Council of Engineering Institutions.
tion 13 (Power to lay down or erect electric lines, etc.)	The President of the Council of Engineering Institutions.
tion 54 (For protection of British railways Board)	The President of the Institution of Civil Engineers.
tion 55 (For protection of Metro- politan Water Board)	The President of the Institution of Civil Engineers.

PART VII

—cont.

Restriction
on right to
prosecute.

61. The written consent of the Attorney-General shall be a requisite for the taking of proceedings by any person other than a party aggrieved or the Corporation in respect of an offence created by or under this Act.

Appeals.

62.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used to that time;

then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Repeals.

63.—(1) The enactments referred to in the first column of Schedule 2 to this Act are hereby repealed to the extent specified in the second column of that schedule.

(2) Notwithstanding the repeal effected by this section—

- (a) all existing notices, notices to treat, agreements, awards, conveyances, contracts, covenants, deeds, instruments, leases, obligations, rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued, enforced and completed as if this Act had not been passed;
- (b) all actions, arbitrations, prosecutions and proceedings by, with or against the Corporation by reason of any matter or thing done before the commencement of this Act in execution of or in relation to the repealed enactments or any of them may be continued, commenced or prosecuted by or against the Corporation as if this Act had not been passed;

PART VII
—cont.

(c) all rates, rents, fines, tolls and other sums at the commencement of this Act due or accruing due to the Corporation may be collected and recovered by the Corporation as if this Act had not been passed;

(d) all books and documents which under any of the repealed Acts or otherwise would have been receivable in evidence shall be receivable in evidence as if this Act had not been passed.

(3) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section 38 of the Interpretation Act, 1889.

1889 c. 63.

4.—(1) In proceedings under any enactment, a document purporting to be certified by the town clerk as a copy of a resolution passed, order made or report received by the council or a committee thereof on a specified date shall be evidence that that resolution, order or report was duly passed, made or received by the council or committee on that date. Evidence of proceedings, appointments, etc.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the council or committee on that date.

(3) In this section “ officer ” includes a servant and an agent.

(4) Section 286 of the Act of 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the council and its committees.

65.—(1) For the purposes of this Act—

Reckoning of periods.

(a) in reckoning any period which is therein expressed to be a period from or before a given date, that date shall be excluded; and

(b) in reckoning any period therein mentioned of eight days or less which apart from this provision would include a day being a Sunday, Christmas Day, Good Friday or a bank holiday, that day shall be excluded.

(2) In this section “ bank holiday ” means a day which is, or may be observed as, a bank holiday, or a holiday, under the Bank Holidays Act, 1871, or the Holidays Extension Act, 1875.

1871 c. 17.
1875 c. 13.

PART VII*—cont.*

Application
of general
enactments.

66.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of Schedule 3 to this Act shall have effect as if references therein to that Act included references to section 52 (Sanitary conveniences for persons employed on construction work) and section 53 (Awnings over footway) of this Act.

Costs of Act.

67. All the costs, charges and expenses preliminary to and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

SCHEDULE 1

PROVISIONS APPLIED TO MARKET ROADS

Section 37.

PART I

PROVISIONS IN RESPECT OF WHICH CERTAIN OFFICERS OF THE CORPORATION
DO NOT HAVE THE POWERS OF A POLICE CONSTABLE

PROVISIONS OF ACT OF 1960—

- Section 1 (Causing death by reckless or dangerous driving);
- Section 2 (Reckless, and dangerous, driving generally);
- Section 3 (Careless, and inconsiderate driving);
- Section 5 (Driving under age);
- Section 6 (Driving, or being in charge, when under influence of drink or drugs);
- Section 9 (Reckless, and dangerous, cycling);
- Section 10 (Careless, and inconsiderate, cycling);
- Section 11 (Cycling when under influence of drink or drugs);
- Section 13 (Restriction on carriage of persons on bicycles);
- Section 16 (Leaving vehicles in dangerous positions);
- Section 77 (Duty to stop, and furnish particulars, in case of accident);
- Section 97 (Minimum age for driving);
- Section 98 (Drivers of motor vehicles to have driving licences);
- Section 110 (Offence of applying for or obtaining licence, or driving, while disqualified);
- Section 201 (Users of motor vehicles to be insured or secured against third-party risks);
- Section 202 (Exceptions from requirement of third-party insurance or security);
- Section 218 (Penalisation of tampering with motor vehicles);
- Section 219 (Penalisation of holding or getting on to vehicle in order to be towed or carried);
- Section 225 (Power of police constables to require production of driving licences);
- Section 226 (Power of police constables to obtain names and addresses of drivers, and others, and to require production of evidence of insurance or security and test certificates);

SCH. 1
—cont.

- Section 228 (Penalisation of failure to give name and address and power of arrest, in case of reckless or careless driving or cycling);
- Section 230 (Duty of driver, in case of accident involving injury to another, to produce evidence of insurance security or to report accident);
- Section 231 (Duty of owner of motor vehicle to give information for verifying compliance with requirements of compulsory insurance or security);
- Section 232 (Duty to give information as to identity of driver &c., in certain cases);
- Section 241 (Restrictions on prosecutions for certain offences);
- Section 250 (Application to the Crown).

1967 c. 30.

SECTIONS OF THE ROAD SAFETY ACT, 1967—

- Section 1 (Driving or being in charge with blood-alcohol concentration above the prescribed limit);
- Section 2 (Breath tests);
- Section 5 (Consequences of conviction of certain offences of driving or being in charge);
- Section 6 (Application of Part I to the Crown);
- Section 7 (Interpretation of Part I);
- Section 31 (General provisions as to interpretation, etc.).

SECTIONS OF ACT OF 1967—

- Section 54 (Traffic signs);
- Section 55 (Powers and duties of highway authorities as to placing of traffic signs);
- Section 61 (Removal of traffic signs, etc.);
- Section 79 (Exemption of fire engines, etc., from speed limits).

PART II

PROVISIONS IN RESPECT OF WHICH CERTAIN OFFICERS OF THE CORPORATION
HAVE THE POWERS OF A POLICE CONSTABLE

SECTIONS OF ACT OF 1960—

- Section 4 (Speeding);
- Section 8 (Restriction on carriage of persons on motor cycles);
- Section 14 (Drivers to comply with traffic directions);
- Section 223 (Power of police to stop vehicles).

SECTION OF ACT OF 1967—

- Section 58 (Emergency traffic signs).

SCHEDULE 2

ENACTMENTS REPEALED

Section 63.

1. Enactment	2. Extent of repeal	
Chiswick Urban District Council Act, 1911	The whole Act.	1911 c. cxii.
Uxbridge and Chiswick Corporation Act, 1936	The whole Act except so much as relates to electricity.	1936 c. lxiii.
Middlesex County Council Act, 1944	Section 251 so far as it relates to the borough. Section 275 so far as it relates to the borough.	1944 c. xxi.

SCHEDULE 3

SECTIONS OF ACT OF 1936 APPLIED

Section 66.

PART I

SECTIONS APPLIED TO THIS ACT

Section	Marginal note
271	Interpretation of "provide".
277	Power of councils to require information as to ownership of premises.
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
293	Recovery of expenses, &c.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
299	Inclusion of several sums in one complaint, &c.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

SCH. 3
—cont.

PART II

SECTIONS APPLIED TO SECTIONS 52 AND 53 OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed on owner.
290	Provisions as to appeals against, and the enforcement of, notices requiring execution of works.
291	Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
1925 c. 22. 329	Saving for certain provisions of the Land Charges Act, 1925.

PRINTED IN ENGLAND BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD.,
HARRY PITCHFORTH

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament